

CORRESPONDENCE · 31 JAN 1997

Registered letter Collorafi → McDonald's

TYPE	DATE	PARTIES
Correspondence	31 Jan 1997	From Bernard Collorafi

SUMMARY SHEET

Letter Collorafi to McDonald's France · 31 January 1997

Overview: registered letter with acknowledgement of receipt sent by Bernard Collorafi to Denis Hennequin, chairman and chief executive of McDonald's France, following a meeting on 22 January with Isabelle Kuster.

Key points

Bernard Collorafi takes note of the allocation of the Antibes Ouest restaurant and expresses thanks for this trust. He nevertheless maintains his request for the allocation of the Vallauris restaurant, granted to Patrick Gilarski, which he considers discriminatory: in his view, Vallauris falls within his catchment area and not that of Gilarski, who is based in Cannes. He puts forward geographical arguments (the barrier of the Californie hills, distances of 5.8 km from Antibes Nord and 8.8 km from Cannes) and economic ones, estimating the impact at no less than 20% of his business, as the population of Vallauris does its shopping at the Carrefour in Antibes. He recalls that Isabelle Kuster allegedly confirmed, in return, a downward revision of the rental terms of his restaurants in order to ensure the profitability forecast in the opening projections. He states that he will remain vigilant and awaits a precise reply.

Significance

This correspondence documents, before the litigation, the disagreement over restaurant allocations and the alleged commitment to a revision of rents, elements taken up later in the dispute.

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Source: bernardcollorafi.org/en/documents/letter-collorafi-mcdonalds-vallauris-catchment-area-1997/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.